

M/S Vinay Foods v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 10 February 2016 · Writ-C No. 5483 of 2016 · **Writ dismissed; relegated to Clause 6.5 of the Supply Code.**

HEADNOTE

A writ seeking quashing of a demand notice is not entertained where the consumer disputes the accuracy of the bill. Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 is a statutory alternative remedy, and the complaint is to be decided within seven days. The two-year bar under Section 56(2) of the Electricity Act, 2003 was raised but not examined.

FACTUAL SUMMARY

M/s Vinay Foods and another, sanctioned 60 HP load for a rice mill under LMV-6 tariff, filed a writ to quash a demand notice dated 24 November 2015 issued by the Executive Engineer, Pashchimanchal Vidyut Vitran Nigam Limited, Ghaziabad. They disputed the accuracy of the bill and invoked the two-year recovery bar under Section 56(2) of the Electricity Act, 2003. Counsel for the licensee pointed to Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 as a statutory alternative remedy. The Division Bench declined to entertain the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-statutory-alternative-remedy

HOLDING

Where a consumer disputes the accuracy of a demand notice or bill, Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 is a statutory alternative remedy, including a complaint required to be decided within seven days, and a writ petition seeking quashing of the demand will not be entertained. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SECTION 56(2) OF THE ELECTRICITY ACT, 2003 BARRED RECOVERY OF THE IMPUGNED DEMAND

Raised to assail the bill; left unexamined once the Court declined the writ on the Clause 6.5 alternative remedy. ¶ 1